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Know Your Rights: A Citizen's Guide to Article III

Constitutional Protections, Warrant Exceptions, and Practical Law Enforcement Encounters

CONSTITUTIONAL LITERACY SERIES • RPH & LEGAL STUDIES

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Executive Overview & Conceptual Scope

Article III of the 1987 Philippine Constitution embodies the collective historical commitment of the Filipino people to preserve human dignity, civil liberty, and the rule of law against executive overreach and tyrannical coercion.

This guide breaks down core statutory protections into plain language, explaining due process, warrant doctrines, custodial rights, and practical protocols during law enforcement encounters.

Document Structure & Learning Modules

Module	Core Subject Matter & Deliverables	Target Competency
Part 1	Due Process and Equal Protection of the Laws (Section 1)	Fundamental Liberties
Part 2	Searches, Seizures, and the Exclusionary Rule (Section 2)	Privacy and Property
Part 3	Freedom of Speech, Press, and Peaceful Assembly (Section 4)	Democratic Expression
Part 4	Rights of the Accused and Miranda Warnings (Section 12 & 14)	Custodial Protection

Part 1 & 2: Due Process, Warrants, and Constitutional Search Exceptions

Section 1 guarantees that no person shall be deprived of life, liberty, or property without due process of law. Due process demands fair notice, an impartial tribunal, and an opportunity to present evidence.

Under Section 2, citizens are protected from unreasonable searches and seizures. A lawful search generally requires a judicial warrant based on probable cause determined personally by a judge. Contraband seized in violation of Section 2 is inadmissible in court under the Exclusionary Rule ('Fruit of the Poisonous Tree').

CRITICAL CORE INSIGHT: Mere silence or non-resistance in the presence of armed police does not constitute valid voluntary consent to a warrantless search.

Table 1. Constitutional Exceptions to the Judicial Warrant Requirement

Legal Exception	Governing Legal Standard	Constitutional Scope	Prohibited Police Overreach
Search Incident to Arrest	Accused is lawfully arrested first	Immediate area within reach of suspect	Searching rooms beyond immediate reach
Plain View Doctrine	Officer has legal right to be in position	Inadvertent discovery of illegal contraband	Moving objects or opening closed drawers
Stop-and-Frisk	Genuine suspicious circumstance observed	Outer pat-down for dangerous weapons only	Extracting non-weapon items like phones
Checkpoints	Routine visual inspection of vehicles	Visual search without opening closed trunks	Compelling passengers to exit without cause

Part 3 & 4: Freedom of Speech and Custodial Interrogation Protections

Section 4 establishes that peaceful public speech and assembly cannot be subjected to prior restraint or censorship. The Supreme Court in Reyes v. Bagatsing held that public parks and streets are held in trust for citizen dialogue.

Under Section 12 and Republic Act No. 7438, any person under custodial investigation must be informed of their right to remain silent and right to independent, competent counsel. Any extrajudicial confession extracted without counsel is void ab initio.

STRATEGIC TAKEAWAY: Research aid only. Confirm every case and statutory provision in the Supreme Court e-Library or LawPhil before submitting formal legal briefs.

Practical Citizen Protocol During Police Encounters

Maintaining calmness and asserting constitutional prerogatives with professional respect ensures safety and preserves your legal remedies.

Citizen 5-Step Protocol During Law Enforcement Stops

01	Remain calm, keep hands visible, and ask politely: 'Officer, am I free to leave or am I being detained?'
02	If detained, you are required to state your name and provide legal identification; you are NOT required to answer
03	If police request to search your bag, vehicle trunk, or phone, clearly state: 'Officer, I do not consent to any warran
04	Do not physically resist, obstruct, or escalate even if you believe the officer is acting unlawfully.
05	Memorize officer badge names, vehicle plate numbers, and demand immediate access to counsel and family.

References (APA 7th Edition)

Bernas, J. G. (2009). The 1987 Constitution of the Republic of the Philippines: A commentary. Rex Book Store.

Disini v. Secretary of Justice, G.R. No. 203335, 723 Phil. 633 (Supreme Court of the Philippines, 2014).

People v. Cogaed, G.R. No. 200334, 740 Phil. 212 (Supreme Court of the Philippines, 2014).

Republic of the Philippines. (1992). Republic Act No. 7438: Rights of persons arrested, detained or under custodial investigation. Official Gazette.